PECH GROUP HOLDINGS LTD

Technology & Infrastructure Enablers for Africa

PECH GROUP HOLDINGS

GUARANTOR / SURETY FORM

SECTION A: EMPLOYEE INFORMATION

(To be completed by the Employee)

Field	Details
Full Name (Surname, First, Middle):	_____
Position / Job Title:	_____
Department:	_____
Employment Start Date:	_____
Employee ID Number:	_____

SECTION B: GUARANTOR PERSONAL INFORMATION

(To be completed by the Guarantor in his/her own handwriting or typed clearly)

Field	Details
Full Legal Name (Surname, First, Middle):	_____
Date of Birth:	__ / _ / _ (DD/MM/YYYY)
Residential Address (in full):	_____
	_____
City / State:	_____
Primary Phone Number:	_____
Secondary Phone Number:	_____
Email Address:	_____
Occupation / Profession:	_____
Employer's Name:	_____
Employer's Address:	_____
	_____
National Identification Number (NIN):	_____
Bank Verification Number (BVN):	_____

Valid Government-Issued ID Type:	_____
(e.g., International Passport, National ID Card, Driver's Licence, Voter's Card)	
Government-Issued ID Number:	_____
ID Expiry Date:	__ / _ / _ (DD/MM/YYYY)
Relationship to Employee:	_____
How long have you known the Employee?	_ ***years*** _ months

> **Note:** A minimum period of **three (3) years** of personal acquaintance with the Employee is required. Guarantors who have known the Employee for less than three years will not be accepted.

SECTION C: GUARANTOR'S DECLARATION

I, _____ (full legal name of Guarantor), of the address stated in Section B above, do hereby solemnly and sincerely declare and confirm as follows:

1. **Personal Knowledge:** I have known _____ (full name of Employee) personally and continuously for a minimum period of **three (3) years** preceding the date of this declaration, and I am fully acquainted with his/her character, background, and conduct.
2. **Character Confirmation:** I confirm, to the best of my knowledge and belief, that the above-named Employee is a person of good character, integrity, honesty, and sound moral standing, and that I consider him/her suitable for employment with PECH Group Holdings Ltd.
3. **Responsibility for Conduct:** I hereby agree to be responsible for the general conduct, behaviour, and performance of the Employee throughout the duration of his/her employment with PECH Group Holdings Ltd. I undertake to use my best efforts to ensure that the Employee discharges his/her duties faithfully, diligently, and in accordance with the Company's policies and procedures.
4. **Financial Liability:** I expressly agree and undertake to bear full financial liability for any and all losses, damages, costs, or expenses incurred by PECH Group Holdings Ltd arising directly or indirectly from the Employee's fraud, theft, misappropriation, embezzlement, negligence, wilful misconduct, breach of duty, or any other wrongful act or omission committed during the course of his/her employment. This financial liability shall be subject to the cap specified in Section D of this Form.
5. **Return of Company Property:** I agree to ensure the prompt return of all property, equipment, documents, data, intellectual property, and any other assets belonging to PECH Group Holdings Ltd in the event that the Employee absconds, abandons his/her position, or otherwise fails to return such property upon the termination of employment, howsoever arising.
6. **Cooperation with Investigations:** I undertake to cooperate fully with PECH Group Holdings Ltd in any investigation, inquiry, audit, or legal proceeding relating to the Employee's conduct, performance, or any matter arising from his/her employment.
7. **Attendance at Meetings:** I agree to attend any meetings, hearings, or proceedings convened by PECH Group Holdings Ltd in connection with any matter relating to the Employee, upon reasonable notice being given to me.
8. **Notification of Changes:** I undertake to notify PECH Group Holdings Ltd immediately and in writing of any change in my contact information, residential address, employment status, or any material change in my personal circumstances that may affect my capacity to fulfil the obligations under this guarantee.
9. **Truth and Accuracy:** I declare that all information provided by me in this Form is true, accurate,

complete, and not misleading in any respect. I understand that the provision of false, inaccurate, or incomplete information shall constitute grounds for voiding this guarantee and may result in legal action against me.

Guarantor's Initials: _ *Date: / /_*

SECTION D: SCOPE OF GUARANTEE

1. **Financial Liability Cap:** The Guarantor's aggregate financial liability under this guarantee shall not exceed an amount equivalent to **six (6) months of the Employee's gross monthly salary** at the time the liability arises, unless a court of competent jurisdiction orders otherwise.
2. **Company Property Coverage:** The guarantee extends to the full replacement value of all Company property, equipment, documents, and assets entrusted to or accessible by the Employee during the course of employment.
3. **Duration of Guarantee:** This guarantee shall remain in full force and effect for the **entire duration of the Employee's employment** with PECH Group Holdings Ltd and shall continue for a further period of **twelve (12) months** following the date of termination of the Employee's employment, howsoever arising (whether by resignation, dismissal, redundancy, mutual agreement, or otherwise). This survival period is intended to cover any claims, losses, or liabilities discovered after the date of termination but arising from acts or omissions during the period of employment.
4. **Governing Law:** This guarantee shall be governed by and construed in accordance with the laws of the Federal Republic of Nigeria, including but not limited to the provisions of the Nigerian Labour Act (Cap L1, Laws of the Federation of Nigeria, 2004), the Contract Law of the applicable State, and any other relevant legislation in force from time to time.

SECTION E: GUARANTOR OBLIGATIONS

The Guarantor hereby acknowledges and agrees to the following continuing obligations:

1. **Change of Contact Information:** The Guarantor shall notify PECH Group Holdings Ltd in writing within **seven (7) days** of any change in residential address, telephone number, email address, or place of employment.
2. **Cooperation with Investigations:** The Guarantor shall cooperate promptly and fully with any investigation, audit, or inquiry conducted by PECH Group Holdings Ltd or any authorised law enforcement agency in relation to the Employee.
3. **Attendance at Meetings:** The Guarantor shall attend any meeting, hearing, disciplinary proceeding, or inquiry convened by PECH Group Holdings Ltd relating to the Employee, upon receipt of at least **forty-eight (48) hours** written or verbal notice.
4. **Production of the Employee:** In the event that the Employee absconds, abandons his/her duties, or becomes unreachable, the Guarantor shall use his/her best endeavours to locate and produce the Employee before PECH Group Holdings Ltd or any relevant authority within **fourteen (14) days** of receiving notice to do so.
5. **Reporting Obligations:** The Guarantor shall promptly report to PECH Group Holdings Ltd any

information that comes to his/her knowledge regarding the Employee's involvement in any criminal activity, misconduct, or any act that may be detrimental to the interests of the Company.

SECTION F: INDEMNIFICATION CLAUSE

The Guarantor hereby irrevocably and unconditionally undertakes to **indemnify and hold harmless** PECH Group Holdings Ltd, its directors, officers, employees, agents, and successors against all losses, damages, claims, liabilities, costs (including legal costs on a solicitor-and-own-client basis), expenses, penalties, fines, and any other financial consequences arising directly or indirectly from:

(a) Any act of fraud, theft, misappropriation, embezzlement, or dishonesty committed by the Employee;

(b) Any negligence, gross negligence, wilful misconduct, or breach of duty by the Employee;

(c) Any damage to or loss of Company property caused by the Employee;

(d) Any breach by the Employee of his/her employment contract, Company policies, or applicable laws and regulations;

(e) The Employee's failure to return Company property upon termination of employment;

(f) Any third-party claims arising from the Employee's acts or omissions in the course of employment.

This indemnity shall be a continuing obligation, separate and independent from the Guarantor's other obligations under this Form, and shall not be affected by any forbearance, delay, or indulgence granted by PECH Group Holdings Ltd to the Employee or the Guarantor.

SECTION G: DATA PROTECTION CONSENT (NDPA 2023)

In accordance with the **Nigeria Data Protection Act 2023 (NDPA)** and the **Nigeria Data Protection Regulation (NDPR)**, I, the undersigned Guarantor, hereby:

1. **Consent to Processing:** I freely, specifically, and unambiguously consent to the collection, processing, storage, and use of my personal data as provided in this Form by PECH Group Holdings Ltd for the purposes of:
2. Verifying the information provided herein;
3. Administering and enforcing the terms of this guarantee;
4. Complying with legal and regulatory requirements;
5. Any other legitimate purpose related to the Employee's engagement with the Company.
6. **Verification of Information:** I consent to PECH Group Holdings Ltd verifying all information provided in this Form through any lawful means, including but not limited to contacting my employer, financial institutions, government agencies (including the National Identity Management Commission and relevant BVN custodians), referees, and any other relevant third parties.
7. **Contact by PECH:** I consent to being contacted by PECH Group Holdings Ltd through any of the contact details provided in this Form, at any time, in connection with any matter relating to this guarantee or the Employee's employment.
8. **Data Retention:** I understand and agree that my personal data may be retained by PECH Group Holdings Ltd for the duration of the guarantee (as specified in Section D) and for such additional period as may be required by applicable law or regulation.
9. **Rights:** I acknowledge that I have the right to access, rectify, and request deletion of my personal data, subject to applicable legal requirements. Such requests should be directed in writing to PECH

Group Holdings Ltd at the address provided above.

Guarantor's Initials: _ *Date: / / _*

SECTION H: VERIFICATION

PECH Group Holdings Ltd **reserves the absolute right** to verify all information provided by the Guarantor in this Form through any lawful means it deems appropriate. This includes, without limitation:

- Physical verification of the Guarantor's residential and/or business address;
- Confirmation of the Guarantor's employment status and income;
- Verification of the Guarantor's identity through government databases;
- Background checks and reference checks;
- Any other verification measures deemed necessary.

WARNING: The provision of **false, misleading, fraudulent, or materially incomplete information** in this Form shall:

(a) Automatically render this guarantee **null and void**;

(b) Expose the Guarantor to **criminal prosecution** for fraud and/or perjury under the Criminal Code Act (Cap C38, Laws of the Federation of Nigeria) and/or the Penal Code (Northern States), as applicable;

(c) Entitle PECH Group Holdings Ltd to pursue all available **civil remedies** against the Guarantor, including but not limited to claims for damages and costs;

(d) Result in the **immediate suspension or termination** of the Employee's engagement, subject to due process.

SECTION I: ATTESTATION & SIGNATURES

Guarantor

I have read and understood the contents of this Guarantor Form in its entirety. I confirm that I have entered into this guarantee voluntarily, without coercion or undue influence, and with full knowledge of my rights, obligations, and liabilities hereunder.

Signature of Guarantor:	_____
Printed Full Name:	_____
Date:	__ / _ / _ (DD/MM/YYYY)

Witness

Signature of Witness:	_____
Printed Full Name:	_____
Residential Address:	_____

	_____
Occupation:	_____
Phone Number:	_____
Date:	__ / _ / _ (DD/MM/YYYY)

Notarization

BEFORE ME, a Commissioner for Oaths / Notary Public, personally appeared the above-named Guarantor, who is identified by _____ (type and number of identification document) and who, being duly sworn/affirmed, acknowledged that he/she signed this Form voluntarily as his/her free act and deed.

Name of Commissioner for Oaths / Notary Public:	_____
Signature:	_____
Stamp / Seal:	[AFFIX OFFICIAL STAMP / SEAL HERE]
Date:	__ / _ / _ (DD/MM/YYYY)

SECTION J: REQUIRED ATTACHMENTS

The following documents must be attached to this completed Form. Incomplete submissions will not be processed.

- [ ] Two (2) recent passport photographs of the Guarantor (white background, taken within the last 6 months)
- [ ] Two (2) recent passport photographs of the Employee (white background, taken within the last 6 months)
- [ ] Certified true copy of Guarantor's valid government-issued identification document
- [ ] Utility bill (not more than 3 months old) as proof of Guarantor's residential address
- [ ] Employment verification letter from Guarantor's current employer (if employed)

FOR OFFICIAL USE ONLY

(This section is to be completed by PECH Group Holdings Ltd Human Resources Department)

Field	Details
Verified By (HR Officer Name):	_____
HR Officer Employee ID:	_____
Date Verified:	__ / _ / _ (DD/MM/YYYY)
Verification Method(s) Used:	_____
Verification Notes / Remarks:	_____
	_____

	_____
Address Verification:	Completed [ ] / Pending [ ] / N/A [ ]
Employment Verification:	Completed [ ] / Pending [ ] / N/A [ ]
Identity Verification:	Completed [ ] / Pending [ ] / N/A [ ]
Decision:	**APPROVED [ ]** / **REJECTED [ ]**
Reason for Rejection (if applicable):	_____
HR Officer Signature:	_____
Date:	__ / _ / _ (DD/MM/YYYY)

This document is the property of PECH Group Holdings Ltd and is protected by applicable confidentiality and data protection laws. Unauthorised reproduction, distribution, or disclosure of this document or any information contained herein is strictly prohibited.

This guarantee is governed by the laws of the Federal Republic of Nigeria. Any dispute arising out of or in connection with this guarantee shall be subject to the exclusive jurisdiction of the courts of Lagos State, Nigeria.

PECH GROUP HOLDINGS LTD
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TECHNOLOGY & INFRASTRUCTURE ENABLERS FOR PEOPLE

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